

		ten (10) days prior to the scheduled appointment. Should Plaintiff fail to notify Defendants timely, the use of an interpreter will be waived. Should Plaintiff require an interpreter but fail to notify Defendants as required herein, Plaintiff's inability to proceed with the scheduled appointment as a result of no interpreter being present shall be treated as a late cancellation as outlined below. Plaintiff filed a notice of non-opposition, stating that he does not oppose the motion and will appear for his examination. Plaintiff asks the Court not to award sanctions since he will appear for his examination. The Court notes that Defendant complied with the meet and confer and separate statement requirements for this motion. (Cal. Rules of Court, rule, 3.1345, subd. (a)(6) and Code Civ. Proc., § 2032.250, subd. (b).) Next, the Court finds good cause for Plaintiff to participate in the examination because Plaintiff has put the following injuries at issue in his claim for damages, responses to discovery, and deposition responses: concussion, broken ribs on left side, bruising, loss of consciousness, loss of breath, right knee pain resulting in knee replacement, hand tremors, increased loss of balance and emotional distress. The examination as described in the proposed notices and demands sufficiently specify "the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the physician[s] who will perform the examination[s]" as required pursuant to Code of Civil Procedure section 2032.220(c). (See Exhibits F and I.) Given the above, the motion is GRANTED. (Code Civ. Proc., §§ 2032.220, 2032.310, and 2032.320.) The examination should take place on a mutually agreeable date and time but SHALL take place within 20 days of notice of this order. Plaintiff's failure to participate in the examination within 20 days of notice of this order may result in additional sanctions. The Court also finds sanctions appropriate under the circumstances. Defendant's request for sanctions is GRANTED in the amount of \$2,400 for the late cancellation fees plus \$1,060 for preparing the motion, for a total of \$3,460. <i>Defendant to give notice.</i>
108	Elsaey vs. Premier Chrysler Dodge Jeep Ram of Buena Park, 24-01413332	<i>Off-calendar.</i>

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